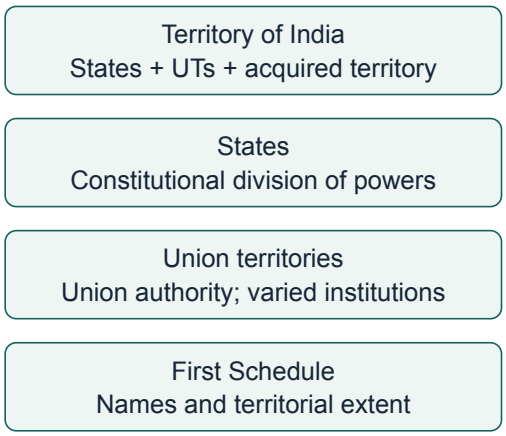
Union and Its Territory

1. Union of States and territory of India

- **Part I, Articles 1–4:** Union and its territory. Article **1**: **“India, that is Bharat, shall be a Union of States.”** Both names were retained after Assembly debate.
- **Ambedkar's two reasons for “Union”:** federation was not formed by an agreement among sovereign States; **States have no right to secede**. Federal structure does not make the Union dissoluble.
- **Territory of India:** territories of States + Union territories + other territories acquired. The **First Schedule** identifies States/UTs and their territorial extent.
- Textbook distinction: **Union of India—constituent States; territory of India—broader geographical expression**. Do not infer that UTs lie outside India or that “Union” always excludes them in every legal context.
- States share constitutionally distributed powers with the Centre; UTs are administered under Union authority, with **different arrangements**—some have legislatures.
- General State framework coexists with special provisions for **Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka**. Fifth/Sixth Schedules provide special administration of Scheduled/tribal areas.
- **Present configuration: 28 States + 8 UTs**. Historical State ordinals below refer to the time of creation, not today's count. Official Constitution and First Schedule



Territory is the geographical whole; administrative arrangements vary.

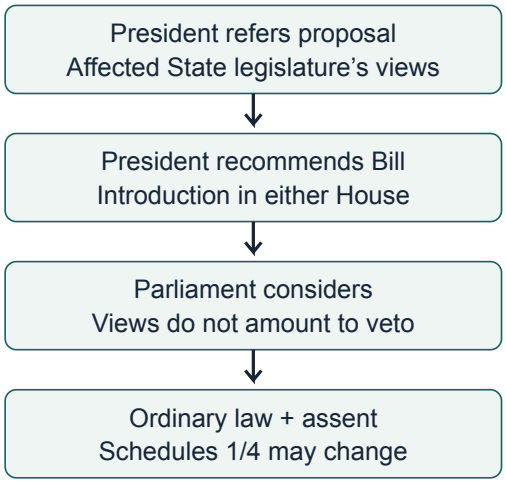
2. Admission versus internal reorganisation

- **Article 2:** Parliament may **admit or establish new States** on terms it thinks fit—admit an existing entity or establish a new one, concerning entry into the Union.
- **Article 3:** internal territorial reorganisation—form a State by separation, union of States/parts, or joining territory to part of a State; **increase/diminish area; alter boundaries; alter name**.
- Article 3's “State” includes UTs for its substantive powers; Parliament can combine parts of States/UTs to form a new State or UT. **18th Amendment (1966)** clarified these powers.

- **Article 4:** Article 2/3 laws may change **First and Fourth Schedules** and contain supplemental, incidental and consequential provisions, including representation arrangements.
- These laws use the **ordinary legislative process/simple majority**; they are **not Article 368 constitutional amendments**.

3. Article 3 procedure: views, not veto

- A Bill can be introduced in **either House**, only on **President's recommendation**.
- If it affects a State's area, boundaries or name, President must first refer it to the **State legislature for views** within a specified period; the period may be extended.
- After the period expires, Parliament may proceed even if no views were sent. **State consent is not required**; President/Parliament need not accept its opinion.
- **No fresh reference for every parliamentary amendment** to a referred Bill: **Babulal Parate v. State of Bombay (1959)**.
- The proviso's reference requirement **does not include UT legislatures**, even where a UT has one.
- **India: indestructible Union of destructible States**—boundaries/names/existence of individual States may change. This describes reorganisation power, not an unlimited power to ignore constitutional safeguards.
- **USA:** constitutional protections require affected State legislatures' consent for specified new-State formations; textbook describes an indestructible Union of indestructible States.

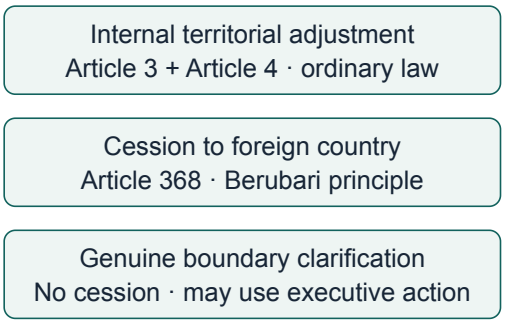


Article 3 requires consultation, not State consent.

4. Acquisition, cession and boundary settlement

- Historical textbook modes of acquisition: **cession** through agreement; **occupation** of territory belonging to no State; and **conquest/subjugation**. Treat the last as historical doctrine: modern international law prohibits territorial acquisition resulting from unlawful force. A lease need not transfer sovereignty, and a plebiscite alone is not a universal legal title. UN Charter, Article 2
- **Cession to another country ≠ internal reduction of State area**. **Berubari Union reference (1960):** Article 3 cannot authorise ceding Indian territory to a foreign country; **Article 368 amendment required**.
- **9th Amendment (1960):** enabled territorial transfers under India–Pakistan agreements following the Berubari opinion.

- **Maganbhai Ishwarbhai Patel v. Union of India (1969):** genuine boundary ascertainment/settlement without ceding Indian territory need not involve a constitutional amendment; executive action can implement it.
- Ask first: **internal adjustment, actual cession, or clarification of an uncertain boundary?** The constitutional route differs.



Identify the territorial change before choosing its legal route.

5. India–Bangladesh Land Boundary Agreement

- **Background:** Radcliffe Award **1947** → Bagge Award **1950** → Nehru–Noon Agreement **1958** → **9th Amendment 1960**. Litigation/political developments delayed implementation regarding former East Pakistan.
- **16 May 1974:** India–Bangladesh Land Boundary Agreement. Implementation required precise identification of land and constitutional authority for territorial transfers.
- **6 September 2011 Protocol:** resolved outstanding enclave, adverse-possession and undemarcated-boundary issues; prepared with concurrence of affected States.
- **100th Amendment (2015):** implemented territorial acquisition/transfer; modified First-Schedule extents for **Assam, West Bengal, Meghalaya and Tripura**.
- **India transferred 111 enclaves to Bangladesh; Bangladesh transferred 51 to India**. Exchange took effect at **midnight 31 July 2015**. Also addressed adverse possessions and approximately **6.1 km** of undemarcated boundary.
- Common land boundary: approximately **4,096.7 km**. **Enclave:** territory surrounded by another country; **adverse possession here:** border land held/administered by the other side despite the previously recorded boundary—distinguish from a domestic property-law claim.
- Recall: **1974 agreement + 2011 protocol → 2015 amendment/implementation; 111 out, 51 in; A–W–M–T**. MEA implementation notice, PIB enclave exchange

6. Integration and the original classification

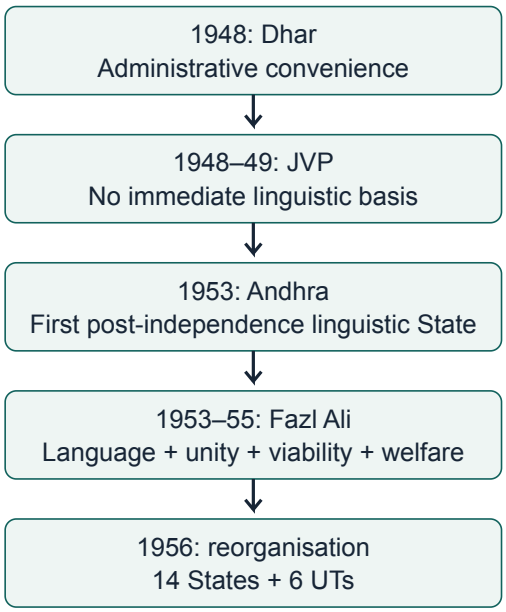
- **1947:** British provinces under direct British administration; princely States under rulers subject to British paramountcy. Independence ended paramountcy; accession and subsequent integration created the Indian Union.
- Textbook count: **552 princely States within India's geographical area; 549 joined initially**, with Hyderabad, Junagadh and Kashmir the major unresolved cases. Historical totals vary by geographical/classification basis; do not present 552 as all princely States across undivided India.

- **Hyderabad:** police/military action **1948**; **Junagadh:** integration followed by referendum **1948**; **Jammu & Kashmir:** Instrument of Accession **1947**. Their initial positions differed; not all simply rejected accession in the same way.
- **1950—29 units: Part A: 9** former Governor's provinces; **Part B: 9** former princely States/unions; **Part C: 10** former Chief Commissioner's provinces/princely territories, centrally administered; **Part D: 1**, Andaman and Nicobar Islands.
- **Part A:** Assam, Bihar, Bombay, Madhya Pradesh, Madras, Orissa, Punjab, United Provinces, West Bengal.
- **Part B:** Hyderabad, Jammu and Kashmir, Madhya Bharat, Mysore, Patiala and East Punjab States Union (**PEPSU**), Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh.
- **Part C:** Ajmer, Bhopal, Bilaspur, Cooch-Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura.
- **Part D:** Andaman and Nicobar Islands. Original categories were abolished/reworked in **1956**.

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7. Linguistic reorganisation: commissions

- **Dhar Commission:** Linguistic Provinces Commission appointed **June 1948**, chaired by **S.K. Dhar**; report **December 1948** favoured administrative convenience over language.
- **JVP Committee:** Congress appointed **December 1948**; **Jawaharlal Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya**; no formal chairman/convenor. Report **April 1949** rejected language as the immediate basis for reorganisation.
- **Andhra State, 1 October 1953:** Telugu-speaking areas separated from Madras following agitation and **Potti Sriramulu's death after a 56-day hunger strike**. First linguistic State created after independence; **capital Kurnool, High Court Guntur**.
- **States Reorganisation Commission:** appointed **December 1953**; **Fazl Ali, K.M. Panikkar, H.N. Kunzru**; report **September 1955** broadly accepted language but rejected **"one language—one State"**.
- Four factors: **unity/security; linguistic/cultural homogeneity; financial/economic/administrative viability; planning and welfare of State and nation**. National unity had priority.
- Recommended **16 States + 3 centrally administered territories**; actual outcome differed: **States Reorganisation Act + 7th Amendment (1956) → 14 States + 6 UTs, 1 November 1956**.



Linguistic reorganisation developed through demands, commissions and legislation.

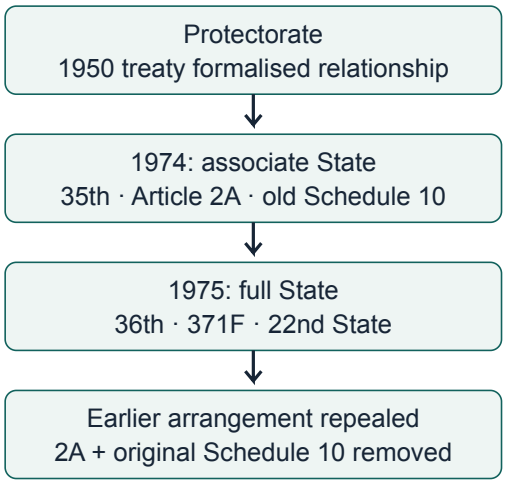
8. The 1956 map and major mergers

- **14 States:** Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal.
- **6 UTs:** Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive–Minicoy–Amindivi Islands, Manipur, Tripura.
- **Kerala:** Travancore-Cochin's relevant territory + Malabar + Kasaragod; Travancore-Cochin's southern Tamil areas went to Madras. **Andhra Pradesh:** Andhra + Telugu-speaking Hyderabad areas.
- **Madhya Pradesh:** Madhya Bharat, Vindhya Pradesh, Bhopal and relevant old MP territory; **Bombay:** Saurashtra/Kutch and other adjustments; **Mysore:** Coorg and Kannada-speaking territories.
- **Punjab:** PEPSU merged; **Rajasthan:** Ajmer merged. **Laccadive–Minicoy–Amindivi UT:** detached from Madras.
- Broad lesson: language mattered alongside integration, economic viability and administrative boundaries; reorganisation was more than renaming existing units.

9. Territorial additions and new States: 1960–1987

- **1960—Bombay Reorganisation Act:** Maharashtra/Gujarat, effective **1 May**; Gujarat counted as **15th State**; initial Gujarat capital **Ahmedabad**.
- **Dadra and Nagar Haveli:** Portuguese rule ended **1954**; local administration until **1961**; **10th Amendment 1961** made it a UT.
- **Goa, Daman and Diu:** Portuguese rule ended through military action **1961**; **12th Amendment 1962** incorporated them as a UT. Goa statehood later separated Daman/Diu.
- **Puducherry:** former French settlements **Puducherry, Karaikal, Mahe, Yanam**; **de facto transfer 1954**, **de jure transfer 1962**; **14th Amendment 1962** incorporated the UT.
- **Nagaland:** Naga Hills–Tuensang area from Assam; **State of Nagaland Act 1962**, effective **1 December 1963**; **16th State**. Earlier Naga Hills–Tuensang administrative arrangement under Assam's Governor preceded statehood.
- **Punjab Reorganisation Act 1966:** Punjab/Haryana; **Haryana 17th**; **Chandigarh UT**, common capital; hill areas transferred to Himachal Pradesh. **Shah Commission**; Punjabi Suba agitation associated with **Master Tara Singh/Akali Dal**.
- **Himachal Pradesh: State Act 1970**, statehood **25 January 1971**, **18th**.
- **1972—North-Eastern Areas (Reorganisation) Act 1971: Manipur 19th, Tripura 20th, Meghalaya 21st**, effective **21 January**; Mizoram/Arunachal Pradesh became UTs from Assam territories. Arunachal previously **NEFA**.
- **Meghalaya: 22nd Amendment 1969** enabled autonomous-State arrangements in Assam; autonomous Meghalaya preceded full statehood.
- **Sikkim:** Chogyal monarchy; protectorate relationship after 1947, formalised in **1950 treaty**—India responsible for defence, external affairs and communications. Government of Sikkim
- **35th Amendment 1974:** associate-State status, **Article 2A + original Tenth Schedule**. **1975 referendum** abolished monarchy; **36th Amendment 1975:** full statehood, **22nd State**, **Article 371F**, First/Fourth Schedule changes; repealed 2A/original Tenth Schedule. Today's anti-defection Tenth Schedule is a later, different insertion.

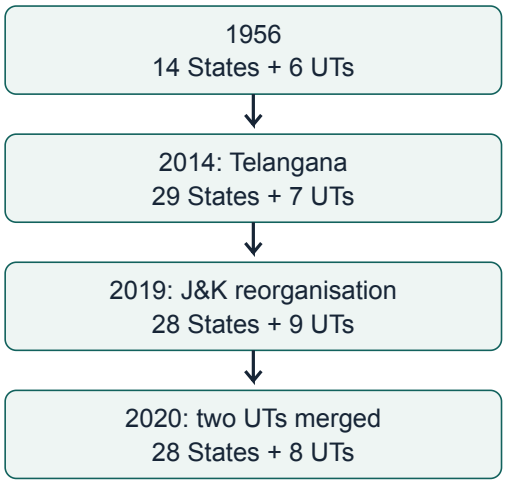
- **1987: Mizoram 23rd and Arunachal Pradesh 24th, 20 February**—respective **1986 State Acts**; **Goa 25th, 30 May**—Goa, Daman and Diu Reorganisation Act **1987**. Daman/Diu remained a separate UT.
- **Mizoram Peace Accord 1986:** Union–Mizo National Front settlement preceded statehood and ended the prolonged insurgency.



Associate-State status was temporary; full statehood followed in 1975.

10. New States and UT changes: 2000 onwards

- **2000: Chhattisgarh from MP—1 November, 26th; Uttaranchal from UP—9 November, 27th; Jharkhand from Bihar—15 November, 28th**. Respective **MP, UP and Bihar Reorganisation Acts, 2000**.
- **Telangana: Andhra Pradesh Reorganisation Act 2014**, effective **2 June 2014**, **29th at creation**; Andhra Pradesh continued as the residuary State. Recall **1953 Andhra → 1956 Andhra Pradesh → 2014 bifurcation**; Hyderabad became the enlarged State's capital in 1956.
- **2019 J&K: C.O.272** applied the Indian Constitution in full and superseded the 1954 order; **C.O.273** made the former Article 370 special regime inoperative. Distinguish these orders from the separate territorial Reorganisation Act.
- **Jammu and Kashmir Reorganisation Act 2019**, effective **31 October 2019: J&K UT with legislature + Ladakh UT without legislature**; Ladakh territory comprised Leh/Kargil districts at reorganisation. State count **29** → **28**, UT count **7** → **9**.
- **DNH and Daman/Diu Merger Act 2019**, effective **26 January 2020:** one UT, **Dadra and Nagar Haveli and Daman and Diu**; UT count **9** → **8**. India Code



Creation, conversion and merger affect State and UT totals differently.

11. Renaming: Act year versus effective date

- **United Provinces → Uttar Pradesh: 1950**.
- **Madras → Tamil Nadu:** Act **1968**, effective **14 January 1969**.
- **Mysore → Karnataka: 1973**; **Laccadive, Minicoy and Amindivi Islands → Lakshadweep: 1973**.
- **Delhi → National Capital Territory of Delhi: 69th Amendment 1991**, operational **1992**; did not confer full statehood.
- **Uttaranchal → Uttarakhand:** Act **2006**, effective **1 January 2007**—correct the chapter's undifferentiated 2006 date. India Code
- **Pondicherry → Puducherry: 2006**; **Orissa → Odisha: 2011**.

12. Other territorial laws in the chapter's reference table

- **Assam (Alteration of Boundaries) Act 1951:** chapter describes a strip transferred to Bhutan. This historical entry predates Berubari; do not generalise it as today's Article 3 authority to cede territory abroad.
- **Himachal Pradesh and Bilaspur (New State) Act 1954:** Bilaspur merged with then Part-C Himachal Pradesh; **not its 1971 full statehood**.
- **Chandernagore (Merger) Act 1954:** former French enclave merged into West Bengal; distinguish from Puducherry's four settlements.
- **Bihar and West Bengal (Transfer of Territories) Act 1956:** Bihar → West Bengal; **Rajasthan and MP (Transfer of Territories) Act 1959:** Rajasthan → MP.
- **Andhra Pradesh and Madras (Alteration of Boundaries) Act 1959:** boundary adjustment.
- **Acquired Territories (Merger) Act 1960:** territories acquired from Pakistan under **1958/1959 agreements** merged into Assam, Punjab and West Bengal.
- **Bihar and UP (Alteration of Boundaries) Act 1968:** boundary adjustment; **Andhra Pradesh and Mysore (Transfer of Territory) Act 1968:** Mysore → AP.
- **Assam Reorganisation (Meghalaya) Act 1969:** autonomous Meghalaya within Assam.
- **Haryana and UP (Alteration of Boundaries) Act 1979:** boundary adjustment.

- Remaining table entries are covered in the creation/renaming timelines above; distinguish **Act year from appointed day**.

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13. Present map: complete recall list

- **28 States:** Andhra Pradesh, Arunachal Pradesh, Assam, Bihar, Chhattisgarh, Goa, Gujarat, Haryana, Himachal Pradesh, Jharkhand, Karnataka, Kerala, Madhya Pradesh, Maharashtra, Manipur, Meghalaya, Mizoram, Nagaland, Odisha, Punjab, Rajasthan, Sikkim, Tamil Nadu, Telangana, Tripura, Uttarakhand, Uttar Pradesh, West Bengal.
- **8 UTs:** Andaman and Nicobar Islands; Chandigarh; Dadra and Nagar Haveli and Daman and Diu; Delhi (NCT); Jammu and Kashmir; Ladakh; Lakshadweep; Puducherry.

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14. One-minute recall and mains structure

- **State views are mandatory to seek where the proviso applies; State consent is not mandatory.** UT-legislature reference is not required by that proviso.
- **Internal reorganisation—ordinary law; actual foreign cession—constitutional amendment; genuine boundary clarification—may be executive action.**
- **Dhar/JVP:** resisted immediate linguistic reorganisation; **Fazl Ali:** language + unity/viability/welfare, not one language–one State.
- **1956: 14 + 6; 2014: 29 + 7; 2019: 28 + 9; 2020 onwards: 28 + 8.**
- **Sikkim associate status ≠ full statehood; Andhra 1953 ≠ Andhra Pradesh 1956; historical State ordinal ≠ current State total.**
- **Mains:** explain constitutional power/procedure → distinguish views from consent → trace language and integration → assess administrative viability, identity, welfare and national unity.